

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Phil Weitzman	Team: Team # 5	CCRB Case #: 200603369	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 02/15/2006 10:30 PM	Location of Incident: in front § 87(2)(b)	18 Mo. SOL 8/15/2007	Precinct: 46		
Date/Time CV Reported Thu, 03/16/2006 2:14 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/16/2006 2:14 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Leo Nugent	11654	933104	046 PCT
2. POF Stacyann Black	17453	938071	046 PCT
3. POM Jaime Pedraza	21301	935479	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. CPT Donald Mchugh	00000	909828	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Leo Nugent	Abuse: Officer Leo Nugent stopped and questioned § 87(2)(b) and § 87(2)(b)	A . Substantiated
B . POM Leo Nugent	Abuse: Officer Leo Nugent frisked § 87(2)(b) and § 87(2)(b)	B . Substantiated
C . POM Jaime Pedraza	Abuse: Officer Jaime Pedraza frisked § 87(2)(b)	C . Substantiated
D . POF Stacyann Black	Abuse: Officer Stacyann Black frisked § 87(2)(b)	D . Substantiated
E . POM Jaime Pedraza	Abuse: Officer Jaime Pedraza searched § 87(2)(b)	E . Substantiated
F . POF Stacyann Black	Abuse: Officer Stacyann Black searched § 87(2)(b)	F . Substantiated
G . POM Leo Nugent	Abuse: Officer Leo Nugent searched the car in which § 87(2)(b) was an occupant.	G . Unsubstantiated
H . POM Jaime Pedraza	Abuse: Officer Jaime Pedraza searched the car in which § 87(2)(b) was an occupant.	H . Unsubstantiated
I . POM Leo Nugent	Abuse: Officer Leo Nugent threatened to arrest § 87(2)(b)	I . Exonerated
J . POM Leo Nugent	Abuse: Officer Leo Nugent threatened to arrest § 87(2)(b)	J . Substantiated

Synopsis

§ 87(2)(b) filed a complaint with the CCRB on 3/16/2006. § 87(2)(b)'s complaint arose from the following events: on 2/15/2006, § 87(2)(b)'s friend, § 87(2)(b) was moving into § 87(2)(b)'s apartment at § 87(2)(b) in the Bronx. § 87(2)(b) parked his car in a bus lane in front of the building, and the two men brought some packages upstairs. When they returned to the car, they were stopped by a unmarked police car containing **Officer Leo Nugent**, **Officer Jaime Pedraza**, and **Officer Stacyann Black**, all of the 46th Precinct. All three officers participated in frisking § 87(2)(b) and § 87(2)(b) (allegations B, C and D), and Officer Pedraza allegedly searched § 87(2)(b) (allegation E) while Officer Black allegedly searched § 87(2)(b) (allegation F). Officer Nugent and Officer Pedraza searched § 87(2)(b)'s car (allegations G and H), and Officer Nugent threatened to arrest § 87(2)(b) for possessing allegedly fraudulent EMS placards (allegation I), and threatened to arrest § 87(2)(b) for possession of a knife (allegation J).

§ 87(2)(g) it is recommended that allegation A be closed, **"Substantiated."** § 87(2)(g) it is recommended that allegations B, C and D be closed, **"Substantiated."** § 87(2)(g) it is recommended that allegations E and F be closed **"Substantiated."** § 87(2)(g) It is therefore recommended that allegations G and H be closed, **"Unsubstantiated."** § 87(2)(g) it is recommended that allegation I be closed, **"Exonerated."** § 87(2)(g) it is recommended that allegation J be closed, **"Substantiated."**

Summary of Complaint

§ 87(2)(b), § 87(2)(b), § 87(2)(b) bald § 87(2)(b)-old black male § 87(2)(b) for § 87(2)(b) in Brooklyn, was interviewed at the CCRB on 3/27/2006 (enc. 8A-H, see enc. 8G for pictures of § 87(2)(b) clarified a few minor points in a phone statement to the CCRB on 4/3/2006 (enc. 9), which has been integrated into the following narrative. § 87(2)(b) a § 87(2)(b) § 87(2)(b) Hispanic male volunteer EMT for § 87(2)(b) in Brooklyn, was interviewed at the CCRB on 4/12/2006 (enc. 10A-G, see enc. 10E for a picture of § 87(2)(b) § 87(2)(g)

§ 87(2)(b) is § 87(2)(b)'s friend, uncle and mentor. On 2/15/2006, § 87(2)(b) was moving to § 87(2)(b)'s apartment, § 87(2)(b) to become § 87(2)(b)'s roommate for a few months before moving to Seattle.

On 2/15/2006, § 87(2)(b) as he normally does, wore his personal Motorola GP300 radio on his belt (visible in photographs of § 87(2)(b) in enc. 8G). § 87(2)(b) explained that he used the radio in his work to "buff calls," or listen-in on NYPD and EMS frequencies as a dispatcher routes 911 jobs, in order to respond before police and EMS units are able to. § 87(2)(b) carries the radio with him and leaves it on even when off duty, from force of habit and in order to keep abreast of developments in the area of Brooklyn where he volunteers. At the time of the incident, the radio was transmitting Brooklyn emergency calls. § 87(2)(b) was also wearing his own personal radio, which was off. In his pocket, § 87(2)(b) carried a folding knife with a US Marines inscription (both friends volunteered in their CCRB interviews that the knife blade was less than four inches.)

According to § 87(2)(b) he and § 87(2)(b) were wearing regular clothes, not a uniform. According to § 87(2)(b), § 87(2)(b) was wearing a full ambulance corps uniform, which consisted of a black polo shirt, black cargo pants and a windbreaker jacket. § 87(2)(b) wore only the black cargo pants with a non-uniform t-shirt.

At approximately 10:30 PM, § 87(2)(b) parked his gray 1990 Nissan Stanza in a bus lane in front of § 87(2)(b) to run upstairs with § 87(2)(b) his passenger, to drop off some packages. In the backseat, they left a roughly four feet by two feet duffel bag containing § 87(2)(b)'s

clothes, and § 87(2)(b)'s backpack (see enc. 10E for a photograph of the backpack), containing books from an EMT training class and a few medical supplies. In between the car's two front seats, next to the handbrake, was a small clear-glass bottle, that had contained scented oil, but was empty § 87(2)(b) brought an example of such a bottle to his interview, see enc. 8G for a photograph). Two EMS placards, which § 87(2)(b) understood to be parking placards, were concealed in the driver's side door pocket (see enc. 8I for scanned copies of the placards). As a supervisor within his ambulance corps, with the rank of Chief, § 87(2)(b) was entitled to special parking privileges while he was working; the placards did not apply when he was off-duty.

After about ten minutes, § 87(2)(b) came downstairs. As he stepped into the street to open the driver's side door, a black unmarked car pulled parallel to § 87(2)(b)'s car. The officer sitting in the front passenger's seat, later known to § 87(2)(b) as Officer Nugent, asked § 87(2)(b) for his driver's license. § 87(2)(b) came outside soon after § 87(2)(b). § 87(2)(b) saw the black car pull alongside § 87(2)(b) as § 87(2)(b) sat in the front driver's seat.

§ 87(2)(b) described Officer Nugent as a twenty-eight-year-old, 5'8" tall white male who was probably blonde and weighed 170 pounds with a medium build.

§ 87(2)(b) described Officer Nugent as a 5'9" white male in his late thirties with dirty blonde hair, weighing 160 pounds with a medium build. Pedraza: white male, tallest officer/6'2", medium build/170 pounds, short-cut black hair, late 30s,

§ 87(2)(b) reached under his jacket into his back right pocket for his wallet, exposing his radio. He then opened his wallet to get his driver's license, exposing his EMS shield (see enc. 8J for a photocopy of the shield). Officer Nugent then asked § 87(2)(b) questions about where he works and his radio.

Officer Nugent got out of the car, as an officer identified by investigation as Officer Stacyann Black exited the back passenger's seat, and an officer identified by investigation as Officer Jaime Pedraza exited the front driver's seat. § 87(2)(b) described Officer Pedraza as a twenty-three-year-old, 5'10" tall white male weighing 150 pounds with a thin build. § 87(2)(b) described Officer Pedraza as the tallest officer of the two, standing 6'2" tall: a white male with a medium build, weighing 170 pounds, with black hair, in his late 30s.

Officer Nugent told § 87(2)(b) "Let me see the radio." Officer Nugent flipped through the radio channels, and, in response to Officer Nugent's questions, § 87(2)(b) explained that the radio only picked up Brooklyn frequencies, and could only transmit point-to-point to other radios, such as § 87(2)(b)'s, and could not transmit on NYPD frequencies. Officer Nugent then returned § 87(2)(b)'s radio and took § 87(2)(b)'s, apparently testing to see whether the radios did transmit.

Officer Nugent ordered § 87(2)(b) and § 87(2)(b) to step to the rear of § 87(2)(b)'s vehicle, and told Officer Pedraza and Officer Black to frisk them. § 87(2)(b) walked to the rear driver's side, and § 87(2)(b) walked to the rear passenger's side.

As § 87(2)(b) walked back, he noticed Officer Nugent look through § 87(2)(b)'s front driver's side window, open the door, and begin leaning into the car. During the course of § 87(2)(b)'s frisk, he saw Officer Nugent flip the car seats up, look under the rugs, behind the visor, and inside the glove compartment, searching the front seat area for roughly seven minutes, and then looking around in the back area for a few more minutes. § 87(2)(b) assumed that Officer Nugent was searching § 87(2)(b)'s bags, because they were the only things in the back seat. Although § 87(2)(b) faced away from his car during the frisk, he was able to look over his shoulder periodically to see what was happening.

§ 87(2)(b) also faced away from the car during the frisk. At one point, he turned around and saw Officer Nugent kneeling down in the driver's seat and looking underneath the seat.

§ 87(2)(b) stated that, at one point, Officer Nugent asked § 87(2)(b) "Is there anything in the trunk we should know about?" § 87(2)(b) replied, "No," and Officer Nugent then opened the trunk and Officer Pedraza looked inside. § 87(2)(b) never provided permission for an officer to search any part of his car.

§ 87(2)(b) stated that Officer Pedraza patted him, felt his windbreaker to see whether it had pockets, and then reached into his overcoat pockets, removing a bunch of tissues and dropping them to the ground. § 87(2)(b) was holding his two wallets in his hands, but could not recall whether he was ordered to remove them from his pockets or not. Officer Pedraza took the wallets and looked inside them. § 87(2)(b) was able to look over and see Officer Black patting § 87(2)(b) but did not see whether she reached into his pockets.

§ 87(2)(b) stated that Officer Black asked him if he had any weapons, at which point he informed her of the knife. She patted his pants and jacket, and, at her request, § 87(2)(b) provided her

with his wallet. She then reached into his pocket, taking out the knife, and reached into each of his jacket and pants pockets, briefly examining his keys, a box of cigars (see enc. 10E for a photograph of the box), and his papers before returning the items.

§ 87(2)(b) could not directly see § 87(2)(b) during the frisk, but was able to observe that Officer Pedraza was patting § 87(2)(b) down, and that Officer Pedraza placed personal items of § 87(2)(b)s, including his wallet, on the car trunk.

Officer Black showed the knife to Officer Pedraza and Officer Nugent. Officer Nugent told § 87(2)(b) that the knife was a gravity knife, and that he could be arrested or summonsed for possessing it. Towards the end of the incident, Officer Nugent saw § 87(2)(b)s military ID § 87(2)(b) is a US military sponsor), and told § 87(2)(b) to take the knife upstairs immediately. § 87(2)(b) did so and returned after about three minutes.

At some point during the frisk, Officer Nugent exited § 87(2)(b)s vehicle with the small glass vial that had been in between the front seats. He whispered to Officer Pedraza, and then asked § 87(2)(b) if he used drugs and if he knew what “hydro” was. § 87(2)(b) replied, “No,” and Officer Nugent told him that the vial looked like it had “residue.” According to § 87(2)(b) the bottle had a single black “tea grain” at the bottom, such as might be released from a bag of herbal tea. According to § 87(2)(b) there was miniscule debris in the bottle. Officer Nugent returned the vial to the vehicle, stating that it smelled like tea.

Officer Nugent then asked § 87(2)(b) and § 87(2)(b) questions about where they lived. When he learned that they lived together, he asked, “Are you guys in a relationship or something?” causing both friends to believe that Officer Nugent was insinuating that they were homosexual. § 87(2)(b) looked at Officer Nugent with an offended expression, and Officer Nugent responded, “No, no, I meant like are you guys friends or something.”

According to § 87(2)(b) Officer Nugent told Officer Pedraza to look in the car’s back seat. § 87(2)(b) saw Officer Pedraza rummaging through the duffel bag, lifting up the contents and shining his flashlight inside. At some point while he searched the back seat, Officer Pedraza walked to the rear of the vehicle and asked § 87(2)(b) in these exact words, if it would be possible to “peek in the trunk.” § 87(2)(b) said, “Not a problem” and opened the trunk himself. Officer Pedraza then scanned the contents of the trunk with his flashlight for a few seconds without ever reaching inside.

Officer Nugent walked across the street, spoke on a cell phone for three to five minutes, and then returned, questioned § 87(2)(b) about the placards in his driver’s side door, and asked for § 87(2)(b) and § 87(2)(b)s EMS IDs § 87(2)(b)s EMS IDs are photocopied in enc. 8J-L. § 87(2)(b) has graduated from EMT school since the incident and received new IDs).

§ 87(2)(b) provided one of his two EMS IDs, which states “EMT-B” on the front. Officer Nugent then stated, “No, the other one,” and § 87(2)(b) provided an ID which states “Chief” on the front, and on the back says, “Private Vehicle Response Unauthorized.” When Officer Nugent saw the latter phrase, he stated that he used to be an auxiliary cop, that he knew the placards were “bogus,” that they had been made on a computer, and that § 87(2)(b) could be arrested for owning them. When recounting this moment at another point in his interview, § 87(2)(b) stated that Officer Nugent used the language “fucking plaques,” and, referring to § 87(2)(b)s ID, said, “You see what this fucking shit says?” When asked to clarify Officer Nugent’s exact language, § 87(2)(b) said that the preceeding phrases represented Officer Nugent’s language “to the best of my knowledge.” § 87(2)(b) also described Officer Nugent’s statements about the placards, but stated that he never heard an officer curse during the incident.

§ 87(2)(b) stated that at one point, Officer Nugent questioned him about the fact that the address on his ID was not § 87(2)(b) § 87(2)(b) explained that his work address was listed on his ID.

Officer Nugent told § 87(2)(b) that he had stopped him because the precinct had had a lot of crimes involving impersonation, including of police officers. Officer Nugent then directed Officer Black to issue § 87(2)(b) a summons, and told § 87(2)(b) that he had to issue him a summons in order to justify entering his vehicle in the event § 87(2)(b) filed a complaint.

Just before the officers drove away, § 87(2)(b) asked for his radio back, and Officer Nugent said, “Oh yeah,” retrieved the radio and returned it to § 87(2)(b).

When § 87(2)(b) looked at his bag and backpack, the contents had been rearranged. When § 87(2)(b) returned to his car, he saw that the items in the glove compartment and side panel were rearranged.

The next day, § 87(2)(b) visited the 46th Precinct stationhouse, where he spoke with the Executive Officer, Captain Donald McHugh. Captain McHugh apologized for the officers' behavior, offered to arrange an informal mediation, and promised to try to "take care of" the summons. At Captain McHugh's direction, the desk officer, Sergeant Jonathan Javier, said that he would go upstairs and attempt to remove the summons from the batch that would be sent downtown; however, he noted that the summons may have already left the precinct. When § 87(2)(b) called back on later days, Captain McHugh had not taken any of the promised steps. § 87(2)(b) waited to pay the summons, believing that it would be canceled, and, the day before his CCRB interview, found the summons online and found that a ten dollar late fee had been added to the \$115 summons. § 87(2)(b) stated that he initially had not wanted to get Officer Nugent in trouble, but when his friends urged him to file a complaint, and when he realized he would have to pay the summons, he decided that Officer Nugent's misconduct should be addressed.

§ 87(2)(b) stated that, based upon his experience working with police officers, he believed that Officer Nugent was acting as a Field Training Officer for Officer Pedraza and Officer Black.

§ 87(2)(b) conducted a photographic identification procedure with the CCRB on 11/28/2006 at the offices of § 87(2)(b) at § 87(2)(b), in Manhattan, where § 87(2)(b) teaches a CPR class. § 87(2)(b) viewed single photos of Officer Pedraza, Officer Nugent and Officer Black. When he looked at Officer Pedraza's photograph, he initially stated that Officer Pedraza looked familiar, but that he could not recall what he did. As soon as § 87(2)(b) looked at the photograph of Officer Nugent, he stated, "This is Officer Nugent. This is the officer that searched my car." He then stated, "I had to see them together," and noted that the photo of Officer Pedraza was the photograph of the officer who held § 87(2)(b) and § 87(2)(b) at the back of § 87(2)(b)'s car. He identified Officer Black as the officer who wrote out his summons. § 87(2)(g)

§ 87(2)(b) added that Officer Pedraza initially searched the front of his vehicle. § 87(2)(b) did not see more specifically which parts of the front of the vehicle Officer Pedraza searched. After searching the front of the vehicle, Officer Pedraza told Officer Nugent, "I didn't find anything," and Officer Nugent then started searching the vehicle.

In a phone conversation on 12/14/2006, § 87(2)(b) explained that he was unavailable to view photographs because he had moved to Seattle.

Results of Investigation

Police Officer Statements

Officer Leo Nugent of the 46th Precinct was interviewed at the CCRB on 5/24/2006 (enc. 15A-D). Officer Nugent is a § 87(2)(b), § 87(2)(b), blonde-haired blue-eyed § 87(2)(b)-old white male who has been with the NYPD for three years. He had no memobook entries regarding this incident (enc. 14A-B).

On 2/15/2006, Officer Nugent worked in uniform from 5:30 PM to 2:05 AM as Training Officer with Officer Stacyann Black and Officer Jaime Pedraza assigned to black unmarked § 87(2)(e), § 87(2)(f). Officer Nugent drove, while Officer Pedraza sat in the front passenger's seat and Officer Black sat in the rear passenger's seat. Officer Nugent explained a training officer's role as "showing the ropes" to new officers who have just graduated from the police academy.

When Officer Nugent noticed § 87(2)(b)'s vehicle parked in the bus line, he double-parked behind § 87(2)(b)'s vehicle and instructed Officer Black to write an administrative summons for the car. As she began to write the summons, § 87(2)(b) whom Officer Nugent described as a black male in his 30s or 40s, ran outside, put a key in the driver's side door and opened it, and told the officers that he had just parked the vehicle there for ten minutes. Officer Nugent rolled down the passenger's side window and asked § 87(2)(b) if he had ID, in order to issue the summons.

As § 87(2)(b) reached for his back pocket, Officer Nugent's radio broadcast a transmission from the central dispatcher regarding a sector car, which Officer Nugent heard coming from a similar radio on § 87(2)(b)'s hip. Officer Nugent stated that he has personally responded to radio runs involving police officer impersonators, who in some cases used radios to fool their victims, and the radio therefore perked his suspicion. At his attorney's prompting, Officer Nugent then stated that he did not suspect § 87(2)(b).

§ 87(2)(b) of impersonating a police officer, but then stated that he did suspect § 87(2)(b) of having engaged in or being about to engage in criminal activity, because he did not understand why § 87(2)(b) was walking around with a radio that picks up police transmissions in a drug- and shooting-prone neighborhood.

Officer Nugent got out of his car, prompting the other two officers to get out as well. § 87(2)(b) explained that he was reaching for his ID, and Officer Nugent then said that, for his safety, he would make sure § 87(2)(b) had no weapons first. Officer Pedraza, who was the closest officer to § 87(2)(b) based upon his position in the passenger's seat, patted him down for two to three seconds, without receiving any specific instructions from Officer Nugent. § 87(2)(b) then provided his ID, and Officer Nugent asked him to stand at the rear of his car. Officer Nugent did not see any particular factors that caused him to suspect § 87(2)(b) of carrying a weapon, aside from the radio.

Within a minute of the initial stop, § 87(2)(b) whom Officer Nugent described as being younger than § 87(2)(b) came outside. Officer Nugent asked § 87(2)(b) who § 87(2)(b) was, and § 87(2)(b) stated that § 87(2)(b) was his son. He did not ask any other questions in order to determine their relationship. At this time, Officer Nugent noticed § 87(2)(b)'s radio, and asked him to stand with § 87(2)(b) and asked for his ID, in order to learn the purpose of the radios. Officer Pedraza and Officer Black stood with the two civilians at the back of § 87(2)(b)'s car.

§ 87(2)(b) and § 87(2)(b) both produced IDs stating that they belonged to a "low-level" volunteer EMS agency. § 87(2)(b)'s ID was hard, while § 87(2)(b)'s ID was thinner and laminated. Officer Nugent asked about the difference, and § 87(2)(b) then provided a hard ID as well. The fact that § 87(2)(b) had two IDs raised Officer Nugent's suspicion, and § 87(2)(b) provided only evasive answers when questioned about the IDs. § 87(2)(b)'s recent New York State ID did not have § 87(2)(b) as an address, but § 87(2)(b) explained that his wife or girlfriend lived in § 87(2)(b).

Officer Nugent crossed the street to call the precinct's Intelligence Sergeant to see whether the sergeant knew of any potential ties to ongoing investigations, but he was not able to get through.

When Officer Nugent returned from his phone call, Officer Pedraza showed him a "gravity" knife that had been recovered from § 87(2)(b). Officer Nugent determined that it was intended to be a souvenir rather than a weapon, based upon the fact that it had no signs of use or tarnish, had a US Marines inscription, and § 87(2)(b) stated that a family member gave it to him. Towards the end of the incident, Officer Nugent told § 87(2)(b) to take the knife upstairs and leave it there.

At some point, Officer Nugent inspected § 87(2)(b)'s locking radio for a "key" button that would have allowed him to transmit calls to the precinct's central dispatcher. § 87(2)(b) claimed that the key button allowed him to transmit to § 87(2)(b)'s radio, but that the dispatcher would not hear it, which Officer Nugent found odd. § 87(2)(b) then told Officer Nugent that he was a "radio expert," and that if he looked in the back of the car, he would find a bag containing radio parts. He then began saying, "Search the car, search the car."

Officer Nugent directed Officer Pedraza to conduct a quick overview ("not a search") of the vehicle. Officer Nugent could not recall the exact words he used. Officer Nugent took Officer Pedraza's place at the back of the vehicle. Officer Nugent described the overview as follows: through the vehicle's untinted windows, Officer Nugent observed Officer Pedraza open the front passenger door, reach inside the car, and remove a glass jar from the middle of the console. Officer Nugent stated that a type of marijuana called "hydro," which has a distinctive fuzz, is normally kept in glass jars to preserve its purity, as opposed to normal marijuana, which is drier and is kept in a plastic bag. Officer Pedraza immediately showed the jar to Officer Nugent.

§ 87(2)(b) stated that the jar was for his oils. Officer Nugent saw no oil residue in the jar, but did see a minimal amount of dry, green leafy substance in the bottom of the crease of the jar, which Officer Nugent believed to be hydro marijuana. Officer Nugent realized that § 87(2)(b) was lying, because there was no oil in the jar. Using his discretion, Officer Nugent determined that there was not enough marijuana to arrest § 87(2)(b) and gave the jar to Officer Pedraza, who placed it back in the vehicle.

At this point, Officer Pedraza conducted a more thorough "overview" of the car, looking for drugs or weapons (at one point, Officer Nugent referred to the overview as a "search.") Officer Nugent stood at the rear of the vehicle and watched Officer Pedraza look in the front and back seat in the car. Officer Nugent did not see whether Officer Pedraza looked in the glove compartment or lifted or searched anything in the back seat; Officer Pedraza did not lift the car seats up. He did not specifically recall whether he asked § 87(2)(b) if he could look in the trunk.

While he was standing at the back of § 87(2)(b)'s vehicle, Officer Nugent noticed that § 87(2)(b)'s driver's side door, which § 87(2)(b) had left open, contained four or five placards in the side pockets. This was the first time Officer Nugent noticed the placards, which were obviously made on a personal computer and laminated. Officer Nugent did not remove the placards from the side door, because he knew that they were bogus based upon the way they combined insignias inappropriately and based upon their appearance. When shown the scans of the placards provided to the CCRB by § 87(2)(b), Officer Nugent pointed to an insignia saying "Emergency Service Vehicle" as an example. The scans were similar to the placards Officer Nugent recalled, but Officer Nugent could not say specifically whether they were the same ones. Officer Nugent noted that, as a former volunteer auxiliary police officer, he knew that members of volunteer organizations sometimes become carried away and make their own parking placards using scanners.

At a different point in his interview, Officer Nugent stated that he noticed the placards before Officer Pedraza searched the vehicle, and that it was his questions about the placards that initially prompted § 87(2)(b) to ask the officers to search the vehicle. After noticing the placards, he walked to the front of the vehicle and shined his flashlight on the floor to check for contraband. He then noticed one of the placards displayed on the dashboard in plain view. He did not notice the glass bottle found by Officer Pedraza at this time.

Officer Nugent told § 87(2)(b) that the placards were not certified by the issuing agency, and that it was a felony to possess them. Officer Nugent denied ever cursing during the incident, reaching into the vehicle or touching the placards.

Officer Nugent stated that he did not arrest § 87(2)(b) and § 87(2)(b) because they were "gentlemen" throughout the entire stop. He assumed that § 87(2)(b) would file a complaint after hearing that § 87(2)(b) had visited the stationhouse a few days after the incident.

Officer Jaime Pedraza of the 46th Precinct was interviewed at the CCRB on 7/12/2006 (enc. 17A-C). Officer Pedraza is a § 87(2)(b), § 87(2)(b) brown-haired brown-eyed § 87(2)(b)-old Hispanic male who has been with the NYPD for two years. He had no memobook entries regarding this incident (enc. 16A-C). § 87(2)(g)

Officer Pedraza stated that he was partnered with Officer Nugent as training officer for Officer Black. Training officers do not act as supervisors or formal teachers, but instruct new officers on how to perform police duties. Officer Nugent had been Officer Pedraza's training officer when Officer Pedraza began the job. Officer Pedraza stated that Officer Nugent was not instructing or supervising him, but that he always tries to learn from officers with more experience than he.

Officer Pedraza stated that § 87(2)(b) wore a radio that was broadcasting transmissions that were similar to police transmissions, in that the radio chirped after each transmission and Officer Pedraza heard a lot of number codes. Officer Pedraza did not hear any references to sectors or other police activities. At some point, Officer Nugent decided to check the two radios and walked across the street with both of them.

Officer Pedraza could not recall who asked § 87(2)(b) and § 87(2)(b) for ID, and was not sure why they were asked for ID. After about a minute, Officer Pedraza looked inside the car and observed the glass vial in between the front driver's seat and the console. The vial was a common container for hydro marijuana. Officer Pedraza could not see whether drugs were inside the vial. When he noticed it, he opened the door of the car, reached in and retrieved it.

When asked why he opened the door, Officer Pedraza initially stated that he did so to ensure that there were no weapons in the car that § 87(2)(b) could reach, because § 87(2)(b) was standing by the door at the beginning of the interaction. Later in his interview, Officer Pedraza stated that the door was already open before he reached in. At another point, he stated that he looked inside the car based upon the presence of the bottle. The bottle contained no residue and no green leafy substance; it was empty.

Officer Pedraza bent his body into the car, placing his knee on the seat, but did not specifically recall reaching with his hands into any particular area. At one point, he stated that he did reach into the side pocket, which contained the laminated placards. He never opened the glove compartment. As Officer Pedraza looked in the car, Officer Black and Officer Nugent stood at the back of the car with the two civilians.

When asked by the undersigned whether § 87(2)(b) ever gave the officers permission to enter the car, Officer Pedraza stated that, at one point, in the context of repeated questions about the placards and

the radios, § 87(2)(b) said, "Go ahead, search my car." Officer Pedraza denied ever asking to search any part of the car or hearing another officer do so, and could not recall whether an officer searched the car in response to § 87(2)(b)'s request. Officer Pedraza never searched inside the back seat.

Officer Pedraza could not recall whether Officer Black frisked one of the civilians, but was sure that he frisked both as they stood at the back of the car. He could not recall whether this was before or after he searched the car. Officer Pedraza frisked them because he was speaking to them by himself; Officer Black was in the car writing a summons and Officer Nugent was somewhere else. Officer Pedraza did not see any specific visual signs that they were carrying weapons. Officer Pedraza felt a knife in § 87(2)(b)'s pocket, removed it, and saw that it said "Navy." Officer Pedraza initially stated, "It wasn't really like a major weapon, you couldn't actually get a summons for that," but, when questioned further, noted that the knife was five to six inches long, and noted that § 87(2)(b) could have been arrested for possessing it, although he did not recall an officer explaining this fact to either civilian.

Officer Pedraza then frisked § 87(2)(b) by touching his pockets and waistband and any other place with a bulge. Officer Pedraza felt something thick in § 87(2)(b)'s back pocket, and removed it in order to make sure that it was just a wallet, and that there was no box-cutter or similar weapon there as well.

Officer Stacyann Black issued § 87(2)(b) a summons for parking in a bus stop on 2/15/2006 (enc. 11). In her memobook, she noted a 10-96 (summons issued) at 10:35 PM (enc. 12A-B). Officer Black was interviewed at the CCRB on 5/5/2006. Officer Black is a § 87(2)(b), § 87(2)(b) § 87(2)(b)-old black female who had been with the NYPD for seven months on 2/15/2006. § 87(2)(g)

§ 87(2)(b) It should be noted that at the time of Officer Black's interview, Officer Pedraza was not yet identified, and Officer Black did not mention him although she was asked to note whom she was working with on the incident date. She claimed not to recognize the description of Officer Pedraza provided by § 87(2)(b).

Officer Black stated that she had placed her summons on § 87(2)(b)'s windshield before he arrived at the scene. Officer Black stated that § 87(2)(b)'s radio was not turned up, and the officers could not hear it.

Officer Black stated that § 87(2)(b) was carrying a switch-blade pocket knife in plain view, and Officer Nugent frisked the outside of his garments based upon the knife without reaching into his pockets. She did not recall the length of the knife, but recalled Officer Nugent stating that the knife was illegal. There was no discussion of an inscription on the knife.

Officer Black recalled the presence of § 87(2)(b)'s bottles, but could not recall where they were located. She believed that they were visible, and Officer Nugent then questioned § 87(2)(b) about their purpose.

Officer Black noticed § 87(2)(b)'s placards in the side pocket of his driver's side door. She stated that Officer Nugent noticed the placards while walking around the car and looking inside with his flashlight, but could not recall whether Officer Nugent took them. She did note that she only saw the plaques once they were outside the car. She did not recall whether Officer Nugent ever searched the vehicle.

Communications Records

A SPRINT request for radio calls pertaining to this incident was negative (enc. 20A).

Consultation with NY State Department of Health

In order to learn whether § 87(2)(b)'s placards were valid, the undersigned called the New York State Department of Health and was referred to the department's EMS Bureau, which is the certifying agency for all EMS organizations in New York State. The department's representative, § 87(2)(b), stated that the only type of certifying document required by and recognized by his agency is a dark blue and yellow inspection sticker affixed to car windows, on the opposite side from a DMV sticker. Individual EMS entities are allowed to create their own placards, including placards containing the specific language on § 87(2)(b)'s placards, but these placards have absolutely no authority, and are not pertinent to the New York State Department of Health's jurisdiction.

Copies of placards

§ 87(2)(b) provided the CCRB with the placards that were inside his car during the incident, and the agency scanned images of the placards (enc. 8I). One placard states the following: “Emergency Ambulance Service Vehicle; New York State Department of Health Ambulance Registration # § 87(2)(b) License Plate No. § 87(2)(b) Expires 12/07; Unit No. EMS § 87(2)(b) By Authority of New York State Vehicle Traffic Laws 101, 115c & 1104.” The other placard states the following: “Emergency Medical Service; New York State Department of Health; License Plate No. § 87(2)(b) By Authority of New York State Vehicle Traffic Laws 101, 115c & 1104 This is Deemed an Emergency Service Vehicle; Vehicle Identification; Note: any alterations or erasures void this card; Unit No. § 87(2)(b) Expires December 31, 2007; Card No § 87(2)(b)

Police Documents

A request to the 46th Precinct for UF250s pertaining to the stop of § 87(2)(b) and § 87(2)(b) was negative.

Disposition of Summons

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)

Civil Proceeding

On 11/1/2006, the New York City Comptroller’s Office informed the undersigned by letter that § 87(2)(b) has not filed a notice of claim in connection with this incident (enc. 20C).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)

Complainant CCRB History

This is § 87(2)(b) and § 87(2)(b) s first CCRB complaint (enc. 6A-B).

Officer CCRB History

Officer Leo Nugent, Officer Jaime Pedraza and Officer Stacyann Black have not been the subjects of any substantiated CCRB allegations during the course of their respective three-, two- and one-year tenures with the NYPD (enc. 5A-C).

Conclusions and Recommendations

Officer Identification

Officer Nugent was initially identified based upon § 87(2)(b) s memory of his shield number, while Officer Black was identified based upon her signature on § 87(2)(b) s summons. Officer Pedraza was initially identified based upon Officer Nugent’s testimony. § 87(2)(b) accurately selected the officer whose name he read as “Nugent” as Officer Nugent during his photo-viewing, solidifying the identification. Both § 87(2)(b) and § 87(2)(b) accurately recalled Officer Nugent’s blonde hair, and both described Officer Nugent, who stands at 5’9” to Officer Pedraza’s 5’11”, as the shorter of the two officers. Both civilians also accurately described Officer Black as the only black female officer present. Finally, § 87(2)(b) and § 87(2)(b) clearly distinguished between the respective roles of Officer

Nugent and Officer Pedraza in their respective narratives. § 87(2)(g)

Undisputed Facts

On 2/15/2006, § 87(2)(b) parked his car in a bus lane in front of § 87(2)(b) and went up to his apartment with his passenger, § 87(2)(b). When the men returned, they were stopped by Officer Leo Nugent, Officer Jaime Pedraza and Officer Stacyann Black. Officers frisked both men, finding a knife with a US Marines inscription on § 87(2)(b). At least one officer also reached into the vehicle, retrieving a small glass bottle. During the course of the stop, Officer Nugent questioned § 87(2)(b) about his and § 87(2)(b)'s personal radios, the glass bottle, his EMS IDs, his EMS placards, and his driver's license. Officer Nugent also questioned § 87(2)(b) about his knife, and at least one searched § 87(2)(b)'s vehicle. The officers then released § 87(2)(b) and § 87(2)(b) after Officer Black issued § 87(2)(b) a summons § 87(2)(b).

Disputed Facts

§ 87(2)(g)

Credibility

[illegible]

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Notes regarding the pleading of allegations

§ 87(2)(b) and § 87(2)(b) alleged that Officer Nugent implied that they were homosexual by stating, “Are you guys in a relationship or something?” § 87(2)(g)

§ 87(2)(b) alleged that Officer Nugent cursed at him while explaining that his placards were illegal and informing him that he could be arrested for possessing them. § 87(2)(g)

Allegation A, Abuse of Authority: Officer Leo Nugent stopped and questioned § 87(2)(b) and

§ 87(2)(b)

§ 87(2)(g)

Officer Nugent based his decision to stop § 87(2)(b) and § 87(2)(b) on their personal radios. He noted that his precinct has a problem with police impersonators and with unauthorized transmissions to the central dispatcher, and that he wanted to learn why the men were walking around with radios in a drug- and shooting-prone neighborhood. Officer Nugent provided the same explanation to § 87(2)(b) and § 87(2)(b) during the stop itself. § 87(2)(g)

§ 87(2)(g) a level-two stop under *People v. DeBour*, summarized by Barry Kamins in his *New York Search and Seizure* as a stop involving accusatory questioning “of the type which would lead a person to believe that he or she is the *focus* of an investigation,” but which falls short of an actual seizure in which the suspect is no longer free to go. A level-two stop must be based upon a “founded suspicion that criminal activity is afoot.” § 87(2)(g)

§ 87(2)(g) a level-three stop under *People v. DeBour*, which must be based upon reasonable suspicion, defined as that “quantum of knowledge sufficient to induce an ordinarily prudent and cautious man under the circumstances to believe that criminal activity is at hand.” § 87(2)(g)

§ 87(2)(g) As established in the OATH case *PD v. Dowd and Rose*, an officer forced to make quick decisions under the “faster-moving circumstances of the street” should not be punished unless he “acted with knowledge that he was acting improperly, acted without concern for the propriety of his actions, or acted without due and reasonable care that his actions be proper.” § 87(2)(g)

§ 87(2)(g) It is therefore recommended that allegation A be closed, “**Substantiated.**”

Allegation B, Abuse of Authority: Officer Leo Nugent frisked § 87(2)(b) and § 87(2)(b)

Allegation C, Abuse of Authority: Officer Jaime Pedraza frisked § 87(2)(b)

Allegation D, Abuse of Authority: Officer Stacyann Black frisked § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) claimed that it was Officer Pedraza and Officer Black, respectively, who frisked them. Officer Nugent § 87(2)(g) noting that he left Officer Pedraza and Officer Black with the two civilians and, when he returned, Officer Pedraza showed him § 87(2)(b)'s knife. § 87(2)(g)

§ 87(2)(g) New York State Penal Code section 20.00:
“When one person engages in conduct which constitutes an offense, another person is criminally liable for such conduct when, acting with the mental culpability required for the commission thereof, he solicits, requests, commands, importunes, or intentionally aids such person to engage in such conduct.”

§ 87(2)(g)

As noted by Kamins, “The general rule regarding frisks...is that an officer must have reasonable suspicion to believe a suspect has committed a crime *and* a reasonable suspicion that the suspect is armed and dangerous.” (enc. 3D) § 87(2)(g)

As established in the OATH case *PD v. Dowd and Rose*, an officer forced to make quick decisions under the “faster-moving circumstances of the street” should not be punished unless he “acted with knowledge that he was acting improperly, acted without concern for the propriety of his actions, or acted without due and reasonable care that his actions be proper.” § 87(2)(g)

§ 87(2)(b) It is therefore recommended that allegations B, C and D be closed, “**Substantiated.**”

Allegation E, Abuse of Authority: Officer Jaime Pedraza searched § 87(2)(b)

Allegation F, Abuse of Authority: Officer Stacyann Black searched § 87(2)(b)

Kamins notes that “the right to frisk does *not* permit an officer to conduct a full-blown search...Under certain unusual circumstances, a police officer can...conduct an immediate *search* of a specific location on the suspect’s person. This exception to the frisk rule applies only when the officer has some information as to the *precise* location of a weapon.”

§ 87(2)(g)

§ 87(2)(g). As established in the OATH case *PD v. Dowd and Rose*, an officer forced to make quick decisions under the “faster-moving circumstances of the street” should not be punished unless he “acted with knowledge that he was acting improperly, acted without concern for the propriety of his actions, or acted without due and reasonable care that his actions be proper.” § 87(2)(g)

It is therefore recommended that allegation E be closed, “**Substantiated.**”

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that allegation F be closed, “**Substantiated.**”

Allegation G, Abuse of Authority: Officer Leo Nugent searched the car in which § 87(2)(b) was an occupant.

Allegation H, Abuse of Authority: Officer Jaime Pedraza searched the car in which § 87(2)(b) was an occupant.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

_____ it is therefore recommended that allegations G and H be closed, “**Unsubstantiated.**”

Allegation I, Abuse of Authority: Officer Leo Nugent threatened to arrest § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

As established in the OATH case *PD v. Dowd and Rose*, an officer forced to make quick decisions under the “faster-moving circumstances of the street” should not be punished unless he “acted with knowledge that he was acting improperly, acted without concern for the propriety of his actions, or acted without due and reasonable care that his actions be proper.” § 87(2)(g)

It is therefore recommended that allegation I be closed, “**Exonerated.**”

Allegation J, Abuse of Authority: Officer Leo Nugent threatened to arrest § 87(2)(b)

§ 87(2)(g)

a “gravity knife,” defined under New York State Penal Law section 265.00, definition 5, as “any knife which has a blade which is released from the handle or sheath thereof by the force of gravity or the application of centrifugal force which, when released, is locked in place by means of a button, spring, level or other device.” § 87(2)(g)

Section 10-133 of the New York City Administrative Code, which prohibits “any person to carry on his or her person or have in such person’s possession, in any public place, street or park any knife which has a blade length of four inches or more.” § 87(2)(g)

It is recommended that allegation J be closed, “**Substantiated.**”

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: